

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Greg Finch	Team: Squad #14	CCRB Case #: 201600920	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/01/2016 4:10 PM	Location of Incident: 1098 Fulton Street	Precinct: 79	18 Mo. SOL 8/1/2017	EO SOL 8/1/2017	
Date/Time CV Reported Thu, 02/04/2016 10:55 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 02/04/2016 10:55 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Randy Sanchez	5340	956231	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Nicole Soto	29069	956146	079 PCT
2. POM Joshua Acosta	3792	955705	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Randy Sanchez	Force: Police Officer Randy Sanchez used physical force against § 87(2)(b)	
B.POM Randy Sanchez	Abuse: Police Officer Randy Sanchez searched § 87(2)(b)	

Case Summary

On February 4, 2016, § 87(2)(b) filed the following complaint in person at the CCRB.

On February 1, 2016, at approximately 4:10 p.m. § 87(2)(b) was standing in front of 1090 Fulton Street in Brooklyn when he was stopped by PO Randy Sanchez of the 79th Precinct. PO Sanchez was assigned to a foot post with PO Nicole Soto but at the time both officers were passengers in PO Joshua Acosta's marked RMP. PO Sanchez allegedly grabbed § 87(2)(b)'s right hand, bent his wrist and held in that position for approximately 10-15 minutes (**Allegation A**). PO Sanchez seized a bag of marijuana from § 87(2)(b)'s right hand and allegedly searched § 87(2)(b)'s pockets (**Allegation B**). PO Sanchez issued § 87(2)(b) summonses for unlawful possession of marijuana and disorderly conduct (BR 01).

Video footage was obtained from the Family Dollar adjacent to 1090 Fulton Street (BR 02).

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined the option of mediation.
- As of March 3, 2016, there have been no Notice of Claims filed with the NYC Comptroller's office regarding this incident..
- § 87(2)(b) is not due to appear in court for the summonses issued in this case until § 87(2)(b).
- There is no record of any prior criminal convictions for § 87(2)(b) in the Office of Court Administration records (BR 03).

Civilian and Officer CCRB Histories

- § 87(2)(b) does not have any prior CCRB complaints (BR 04).
- PO Randy Sanchez has been a member of the NYPD for two years and does not have any prior CCRB complaints (see officer history).

Findings and Recommendations

Allegations not pleaded

- **Stop of person:** § 87(2)(b) was stopped for possession of marijuana in plain view and issued a summons for that offense. Because the stop was incident to the issuance of the summons, an allegation of stop of person is not pleaded.
- **Threat of arrest:** § 87(2)(b) said that he threatened to slap PO Sanchez and that in response, PO Soto warned him that he would be arrested if he hit an officer. Because this was a statement of fact, no threat of arrest allegation is pleaded.

Allegation A - Force: Police Officer Randy Sanchez used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Sanchez grabbed § 87(2)(b)'s left wrist and bent the wrist forward for 10-15 minutes over the course of the stop (BR 05). § 87(2)(b) alleged that the force of PO Sanchez twisting § 87(2)(b)'s wrist was so strong that § 87(2)(b) said his wrist still hurt during his CCRB interview, which was conducted three days after the stop. § 87(2)(b)

§ 87(2)(b) did not seek medical treatment for his wrist injury but told investigators he bandaged his wrist for one to two days after the incident.

PO Sanchez recounted that he saw § 87(2)(b) holding a bag of marijuana in his open hand and that § 87(2)(b) stuck that hand into his pocket when PO Sanchez approached (BR 06). PO Sanchez admitted that he grabbed § 87(2)(b)'s wrist to pull his hand out of the pocket. PO Sanchez denied that he bent § 87(2)(b)'s wrist or held it for any prolonged period of time. PO Sanchez said that during the stop he left § 87(2)(b)'s side on the sidewalk and walked to the RMP to conduct a warrant check. PO Soto and PO Acosta both denied that PO Sanchez grabbed and bent § 87(2)(b)'s wrist and both denied using any force against § 87(2)(b) (BR 07; BR 08). PO Sanchez issued § 87(2)(b) a summons for unlawful possession of marijuana and disorderly conduct (BR 01). PO Soto and PO Acosta both corroborated that PO Sanchez walked away from § 87(2)(b) to perform a warrant check.

SnagIt 1 embedded below shows that PO Sanchez and PO Acosta left § 87(2)(b)'s side and entered the RMP approximately 2 minutes after the initial stop (BR 09).



2016-03-02_15-46-52.mp4

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation B – Abuse of Authority: Police Officer Randy Sanchez searched § 87(2)(b)

- § 87(2)(b) alleged that PO Sanchez searched both § 87(2)(b)'s jacket and pants pockets and removed all items. § 87(2)(b) admitted that he had a joint in his hand during the stop, but denied that any officer seized the joint from his hand during the stop.
- PO Sanchez recounted that he saw § 87(2)(b) on the sidewalk holding a bag of marijuana in his open hand, saw § 87(2)(b) put the marijuana in his pocket, removed § 87(2)(b)'s hand from the pocket and seized the marijuana from § 87(2)(b)'s hand. This is corroborated by the unlawful possession of marijuana summons and PETS voucher (BR 01; BR 10). PO Soto and PO Acosta did not see PO Sanchez's search of § 87(2)(b) but PO Soto independently observed the marijuana in § 87(2)(b)'s hand before the officers approached.
- The video footage shows the arrival of the RMP to the scene and officer movement to and from the stop, but does not directly show PO Sanchez's search of § 87(2)(b) (BR 02).
- New York State Penal Law states that a person is guilty of criminal possession of marijuana in the fifth degree when he possesses marijuana in a public place open to public view. Penal Law 221.10 (BR 11).

- § 87(2)(b), § 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date